

		An employer shall not be liable for punitive damages “based upon acts of an employee of the employer, unless the employer had advance knowledge of the unfitness of the employee and employed him or her with a conscious disregard of the rights or safety of others or authorized or ratified the wrongful conduct for which the damages are awarded or was personally guilty of oppression, fraud, or malice. With respect to a corporate employer, the advance knowledge and conscious disregard, authorization, ratification or act of oppression, fraud, or malice must be on the part of an officer, director, or managing agent of the corporation.” (Civ. Code, § 3294, subd. (b).) Plaintiff concedes Plaintiff did not allege sufficient facts to support a claim for punitive damages against a corporate defendant. Plaintiff did not allege sufficient facts to show malice, oppression, or fraud. (<i>See, Nickerson v. Stonebridge Life Ins. Co.</i> (2016) 5 Cal.App.5th 1, 21-22.) Accordingly, the motion to strike the punitive damages allegations and prayer for punitive damages is granted with 15 days leave to amend. Defendant shall give notice. 2. Case Management Conference Continued to 12-82025 at 9:00 a.m.
4	C. vs. DOE 1 2022-01274942	Motion for Summary Judgment and/or Adjudication Continued to 11/24/2025 per stipulation
5	Capuleno vs. El Pollo Loco, Inc. 2023-01324749	Motion for Summary Judgment and/or Adjudication Cross-Defendant Adriano Design’s (“Adriano Design”) motion for summary judgment or, alternatively, summary adjudication, against Cross-Complainants, El Pollo Loco, Inc. and El Pollo Loco Holdings, Inc. (collectively, “El Pollo Loco”), is denied. <u>Procedural Issues</u> Adriano Design’s request for judicial notice of the complaint is granted. El Pollo Loco’s objections, nos. 1 and 2, to Adriano Design’s evidence, are overruled. Adriano Design’s request for the court to refuse to consider the opposition is declined, as is El Pollo Loco’s request for the court to treat the motion as one solely for summary judgment.